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 **Mahoney v. Meta Platforms, Inc.**
United States District Court, N.D. California. January 6, 2024 | 710 F.Supp.3d 771 (Approx. 13 pages)

Genevieve MAHONEY, Plaintiff,

v.

META PLATFORMS, INC., Defendant.

Case No. 22-cv-02873-AMO

Signed January 6, 2024

Synopsis

Background: Social media platform account holder brought action in state court against platform, asserting claim for defamation related to platform's emergency news statement announcing that it was removing posts that, among other things, encouraged criminal events of the January 6, 2021 attack on the United States Capitol, including videos and photos from protestors. Following removal, platform moved to dismiss.

Holdings: The District Court, Araceli Martínez-Olguín, J., held that:

- 1 holder failed to plausibly allege that platform's statement referred to her by reasonable implication;
- 2 holder failed to plausibly allege that statement could be understood by a third party as referring to her;
- 3 holder failed to allege a publication to a third party who understood statement as defaming her;
- 4 holder failed to allege that statement was susceptible to defamatory meaning; and
- 5 court would defer consideration of platform's anti-SLAPP motion to strike.

Motion granted.

West Headnotes (23)

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- 1

Federal Civil Procedure

 Matters considered in general

On motion to dismiss for failure to state a claim, review of the complaint is generally limited to the contents of the complaint, although the court can also consider a document on which the complaint relies if the document is central to the claims asserted in the complaint, and no party questions the authenticity of the document. [Fed. R. Civ. P. 12\(b\)\(6\)](#).
- 2

Federal Civil Procedure

 Matters considered in general

On motion to dismiss for failure to state a claim, court may consider matters that are properly the subject of judicial notice and may also consider documents referenced extensively in the complaint and documents that form the basis of the plaintiffs' claims. [Fed. R. Civ. P. 12\(b\)\(6\)](#).

3 Federal Civil Procedure **Pleading over**

If dismissal for failure to state a claim is warranted, it is generally without prejudice, unless it is clear that the complaint cannot be saved by any amendment. [Fed. R. Civ. P. 12\(b\)\(6\)](#).

4 Libel and Slander **Nature and elements of defamation in general**

Under California law, "defamation" is an invasion of the interest in reputation.

5 Libel and Slander **Nature and elements of defamation in general**

To prevail on a claim for defamation per se under California law, plaintiff must prove that a defendant published a false statement to another person or persons, that those persons reasonably understood the statements to be about the plaintiff, that the statements were defamatory on their face, and that the defendant failed to use reasonable care to determine the truth or falsity of the statement. [Cal. Civ. Code §§ 44, 45, 46](#).

[2 Cases that cite this headnote](#)

6 Libel and Slander **Person defamed**

To state a defamation claim under California law, the statement on which the claim is based must specifically refer to, or be of and concerning, the plaintiff in some way. [Cal. Civ. Code §§ 44, 45, 46](#).

7 Libel and Slander **Form and requisites in general**

To state a claim for defamation under California law, plaintiff must effectively plead that the statement at issue either expressly mentions her or refers to her by reasonable implication. [Cal. Civ. Code §§ 44, 45, 46](#).

[1 Case that cites this headnote](#)

8 Libel and Slander **Person defamed**

Under reference by reasonable implication, for purposes of stating a defamation claim under California law, a defamatory statement that is ambiguous as to its target not only must be capable of being understood to refer to the plaintiff, but also must be shown actually to have been so understood by a third party. [Cal. Civ. Code §§ 44, 45, 46](#).

[1 Case that cites this headnote](#)

9 Libel and Slander **Person defamed**

Issue of whether a statement can be reasonably interpreted as referring to a plaintiff for purposes of a defamation claim under California law is a question of law for the court. [Cal. Civ. Code §§ 44, 45, 46](#).

10 Libel and Slander **Person defamed**

Social media platform's emergency news statement announcing that it was removing posts that, among other things, encouraged criminal events of the January 6, 2021 attack on the United States Capitol, including videos and photos from protestors, referred to group so large that it could not be construed as of or concerning account holder in any way, and thus, holder could not plausibly allege that statement referred to her by reasonable implication in order to state a defamation claim under California law against platform for deleting her account after she posted an image from the events that she captioned "Our Capitol"; despite alleging that statement implied she was connected to those who committed crimes, she pleaded that thousands of people attended the "rally" to protest election results. [Cal. Civ. Code § 45a](#).

11 Libel and Slander **Person defamed**

Social media platform account holder's reference to another user's posts which identified account name as having "attended this violent" event based on pictures she posted was insufficient to plausibly allege that platform's emergency news statement announcing that it was removing posts that, among other things, encouraged criminal events of the January 6, 2021 attack on the United States Capitol, including videos and photos from protestors, was understood by any third party as referring to her, as required to state a claim for defamation under California law against platform for deleting her account after she posted an image from the events that she captioned "Our Capitol"; holder did not draw any connection between statement and user's posts, much less that user understood statement to refer to her. [Cal. Civ. Code § 45a](#).

12 Libel and Slander **Publication**

California courts define "publication," in context of defamation claims, as a communication to some third person who understands both the defamatory meaning of the statement and its application to the person to whom reference is made. [Cal. Civ. Code §§ 44, 45, 46](#).

13 Libel and Slander **Publication**

Social media platform account holder failed to draw nexus between platform's emergency news statement announcing that it was removing posts that, among other things, encouraged criminal events of the January 6, 2021 attack on the United States Capitol, including videos and photos from protestors, and another user's posts that identified her as having attended the events at the Capitol and thus failed to allege a publication to a third party who understood the statement as defaming her as required to state a defamation claim under California law against platform; other user's posts stated that holder was known to have attended the events based on pictures she shared on her account but did not refer to platform's statement, and it was not clear that other user even saw platform's statement, much less connected it to holder. [Cal. Civ. Code § 45a](#).

14 Libel and Slander **Construction of language used**

To state a claim for defamation under California law, defamatory meaning must be found, if at all, in a reading of the publication as a whole; defamation actions cannot be based on snippets taken out of context. [Cal. Civ. Code §§ 44, 45, 46](#).

- 15 Libel and Slander**  **Construction of language used**
Under California law, defamatory character of language is measured according to the sense and meaning which such language may fairly be presumed to have conveyed to those to whom it was published. [Cal. Civ. Code §§ 44, 45, 46.](#)
-
- 16 Libel and Slander**  **Construction of defamatory language in general**
Under California law, if no reasonable viewer could have reasonably understood a statement in the alleged defamatory sense, the matter may be decided as a question of law. [Cal. Civ. Code § 45.](#)
-
- 17 Libel and Slander**  **Crimes against the government and violation of laws concerning elections and the mail**
Libel and Slander  **Publication**
Social media account holder's allegations that platform's emergency news statement announcing that it was removing posts that, among other things, encouraged criminal events of the January 6, 2021 attack on the United States Capitol, including videos and photos from protestors, was false and susceptible to defamatory meaning were insufficient to state a defamation claim under California law against platform for deleting her account after she posted an image from the events that she captioned "Our Capitol"; no reasonable reader could have reasonably understood the statement in alleged defamatory sense, as statement did not accuse holder of a crime because it did not refer to her at all. [Cal. Civ. Code § 45a.](#)
-
- 18 Pleading**  **Frivolous pleading**
Under California's anti-SLAPP statute, a defendant may bring a special motion to strike a cause of action arising from constitutionally protected speech or petitioning activity. [U.S. Const. Amend. 1](#); [Cal. Civ. Proc. Code § 425.16.](#)
-
- 19 Pleading**  **Application and proceedings thereon**
At first step of two-step process for analyzing an anti-SLAPP motion to strike under California law, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them; only if the court determines that relief is sought based on allegations arising from activity protected by the statute is the second step reached. [Cal. Civ. Proc. Code § 425.16.](#)
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- 20 Pleading**  **Application and proceedings thereon**
At the second step of two-step process for analyzing an anti-SLAPP motion to strike under California law, the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated. [Cal. Civ. Proc. Code § 425.16.](#)
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- 21 Pleading**  **Frivolous pleading**
A motion to strike under California's anti-SLAPP statute may be brought against state law claims pending in federal court. [Cal. Civ. Proc. Code § 425.16.](#)
-
- 22 Pleading**  **Application and proceedings thereon**
If court finds deficiencies in claims as pleaded, it may defer consideration of a motion to strike under California's anti-SLAPP statute pending the filing of an amended complaint. [Cal. Civ. Proc. Code § 425.16](#); [Fed. R. Civ. P. 15\(a\)](#).

[1 Case that cites this headnote](#)

23 Pleading **Application and proceedings thereon**

Court would defer consideration of social media platform's motion to strike under California's anti-SLAPP statute pending account holder's filing of amended pleading in action alleging that platform defamed her through an emergency news statement announcing that it was removing posts that, among other things, encouraged criminal events of the January 6, 2021 attack on the United States Capitol, including videos and photos from protestors, after which platform deleted holder's account on which she had posted an image from the events that she captioned "Our Capitol," where holder failed to state a claim for defamation and amendment was not clearly futile. [Cal. Civ. Proc. Code § 425.16](#); [Fed. R. Civ. P. 15\(a\)](#).

[1 Case that cites this headnote](#)

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ORDER GRANTING MOTION TO DISMISS

Re: Dkt. No. 115

[Araceli Martínez-Olguín](#), United States District Judge

***775** This is a defamation case against Defendant Meta Platforms, Inc. ("Meta"). Before the Court is Meta's Motion to Dismiss, which was heard before this Court on November 2, 2023. Having read the papers filed by the parties and carefully considered their arguments therein and those made at the hearing, as well as the relevant legal authority, the Court hereby **GRANTS** the Motion, for the following reasons.

BACKGROUND**A. Factual History**

Plaintiff Genevieve Mahoney is a college student at Furman University who has an Instagram account with the username @genmahoney19. Mahoney attended what she describes as a "Rally" to protest the results of the 2020 United States presidential election. First Amended Complaint ("FAC") ¶¶ 33, 59. On January 6, 2021, at approximately 2:00 p.m. Eastern Time,¹ Mahoney posted on her Instagram account the single image reproduced below and captioned it "Our Capitol."



“Our Capitol”

FAC ¶¶ 62-63.

On that same day, “some protestors other than Genevieve,” “commit[ted] crimes by breaching the Capitol and engaging in criminal activity.” FAC ¶ 71. At about 7:00 p.m., Meta published an “Emergency *776 News Statement” “to the public and groups and communities” on Facebook related to the events at the Capitol. FAC ¶ 86. Meta’s Emergency News Statement read, in relevant part:

... We are appalled by the violence at the Capitol today. We are treating these events as an emergency ... For those of you who are wondering, here are the actions we’re taking: First, we have been searching for and removing the following content:

- Praise and support of the storming of the Capitol.
- Calls to bring weapons to locations across the US—not just in Washington but anywhere in the US—including protests.
- Incitement or encouragement of the events at the Capitol, including videos and photos from the protestors. At this point they represent promotion of criminal activity which violates our policies.
- Calls for protests—even peaceful ones—if they violate curfew in DC.
- Attempts to restage violence tomorrow or in the coming days.

FAC ¶ 86. Mahoney alleges that the third bullet of the Emergency News Statement, particularly suggesting that images from the protest “represent promotion of criminal activity,” connected her to those who committed crimes at the Capitol by implying that all January 6 event attendees were engaging in criminal conduct. FAC ¶¶ 92, 99, 102. Meta “disabled and deleted” Mahoney’s Instagram account almost a full week after the January 6 protests. FAC ¶ 90.

One of the “groups” that purportedly received the Emergency News Statement was an Instagram account called @fur.meme. FAC ¶ 92. An anonymous student from Furman University operates the @fur.meme account, and the account is “well-followed” by students, faculty, school officials, and alumni. FAC ¶ 54. Mahoney alleges that “@fur.meme posted a series of posts recognizing the Emergency News Statement was referring to Genevieve and her ‘Our Capitol’ photograph.” FAC ¶ 98. The FAC goes on to reproduce 11 screenshots of @fur.meme’s Instagram posts in the hours following the Emergency News Statement. FAC ¶ 104 (see ECF 114 at 18-28). One of the screenshots of @fur.meme’s Instagram posts identifies Mahoney by her Instagram handle, @genmahoney19, as having “attended this violent, pro-Trump event” based on pictures she shared on her public Instagram account.



FAC ¶ 104.

None of the 11 screenshots of @fur.meme's Instagram posts mention the Emergency News Statement. FAC ¶ 104. Plaintiff claims that @fur.meme's posts about her "severely damage[d]" her "reputation *777 within the Furman community." FAC ¶ 108.

B. Procedural History

Mahoney originally filed this case in Tennessee state court on July 1, 2021, advancing causes of action for (1) defamation (libel), (2) defamation (libel by implication), (3) defamation (false light invasion of privacy), and (4) negligent infliction of emotional distress. ECF 1-1. Meta removed the case to U.S. District Court for the Middle District of Tennessee on August 4, 2021. ECF 1. While in that District, Meta moved to dismiss the complaint. ECF 19, ECF 20. Concurrent with its motion to dismiss, Meta moved to transfer the case to this district. ECF 13, ECF 14. Additionally, Plaintiff filed a motion to remand the case to state court. ECF 24, ECF 28. The Honorable William L. Campbell, Jr., of the Middle District of Tennessee denied Plaintiff's motion to remand and granted Meta's motion to transfer the case to this district. ECF 68, ECF 69. In that order, he did not reach the motion to dismiss.

Following transfer, Judge Donato permitted Mahoney to file an amended complaint. ECF 113. Mahoney filed the FAC on March 2, 2023 (ECF 114), and Meta filed the instant Motion to Dismiss on March 31, 2023 (ECF 115). The case was reassigned to the undersigned during briefing on the motion to dismiss. ECF 117.

DISCUSSION

Meta's motion seeks dismissal of the FAC on any of the following three independent bases: (1) Mahoney fails to state a claim for defamation, (2) Meta's conduct is immunized under Section 230 of the Communications Decency Act, and (3) Mahoney's claim for defamation should be stricken under California's anti-SLAPP statute because it seeks to punish Meta for its protected speech activity. Because the Court determines that Mahoney fails to state a claim for defamation, it does not reach the parties' arguments regarding applicability of Section 230 of the Communications Decency Act and defers ruling on the Anti-SLAPP motion.

A. Legal Standard

A motion to dismiss under [Federal Rule of Civil Procedure 12\(b\)\(6\)](#) tests for the legal sufficiency of the claims alleged in the complaint. *Ileto v. Glock*, 349 F.3d 1191, 1199-1200 (9th Cir. 2003). Under [Federal Rule of Civil Procedure 8](#), which requires that a complaint

include a “short and plain statement of the claim showing that the pleader is entitled to relief,” [Fed. R. Civ. P. 8\(a\)\(2\)](#), a complaint may be dismissed under [Rule 12\(b\)\(6\)](#) if the plaintiff fails to state a cognizable legal theory, or has not alleged sufficient facts to support a cognizable legal theory. [Somers v. Apple, Inc.](#), 729 F.3d 953, 959 (9th Cir. 2013).

While the court is to accept as true all the factual allegations in the complaint, legally conclusory statements, not supported by actual factual allegations, need not be accepted. [Ashcroft v. Iqbal](#), 556 U.S. 662, 678-79, 129 S.Ct. 1937, 173 L.Ed.2d 868 (2009). The complaint must proffer sufficient facts to state a claim for relief that is plausible on its face. [Bell Atl. Corp. v. Twombly](#), 550 U.S. 544, 555, 558-59, 127 S.Ct. 1955, 167 L.Ed.2d 929 (2007) (citations and quotations omitted). “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” [Iqbal](#), 556 U.S. at 678, 129 S.Ct. 1937 (citation omitted). “[W]here the well-pleaded facts do not permit the court to infer more than the mere possibility of misconduct, the complaint has alleged – but it has not ‘show[n]’ – that the pleader *778 is entitled to relief.” [Id.](#) at 679, 129 S.Ct. 1937.

1 2 3 Review is generally limited to the contents of the complaint, although the court can also consider a document on which the complaint relies if the document is central to the claims asserted in the complaint, and no party questions the authenticity of the document. See [Sanders v. Brown](#), 504 F.3d 903, 910 (9th Cir. 2007). The court may consider matters that are properly the subject of judicial notice, [Knievel v. ESPN](#), 393 F.3d 1068, 1076 (9th Cir. 2005); [Lee v. City of Los Angeles](#), 250 F.3d 668, 688-89 (9th Cir. 2001), and may also consider documents referenced extensively in the complaint and documents that form the basis of the plaintiffs’ claims. See [No. 84 Emp’r-Teamster Jt. Council Pension Tr. Fund v. Am. W. Holding Corp.](#), 320 F.3d 920, 925 n.2 (9th Cir. 2003). If dismissal is warranted, it is generally without prejudice, unless it is clear that the complaint cannot be saved by any amendment. [Sparling v. Daou](#), 411 F.3d 1006, 1013 (9th Cir. 2005).

B. Defamation

4 5 “Defamation is an invasion of the interest in reputation.” [Smith v. Maldonado](#), 72 Cal. App. 4th 637, 645, 85 Cal.Rptr.2d 397 (1999). A defamatory statement may be either written (libel) or oral (slander). [Cal. Civ. Code §§ 44, 45, 46](#). Here, Mahoney alleges that Meta’s written Emergency News Statement, by attributing criminality to the events at the Capitol, constitutes defamation per se because it is defamatory on its face “without the necessity of explanatory matter.” [Cal. Civ. Code § 45a](#). To prevail on a claim for defamation per se, Mahoney must prove that “a defendant published a false statement to another person or persons, that those persons reasonably understood the statements to be about the plaintiff, that the statements were defamatory on their face [], and that the defendant failed to use reasonable care to determine the truth or falsity of the statement.” [Ellis v. Starbucks Corp.](#), 2015 WL 5240042, at *4 (N.D. Cal. Sept. 5, 2015).

Meta argues that Mahoney’s defamation claim falls short on three bases: (a) Meta’s Emergency News Statement did not refer to Mahoney, (b) Meta’s Emergency News Statement was not published to a third party who reasonably understood its allegedly defamatory meaning or applicability to Mahoney, and (c) Meta’s Emergency News Statement was not false or reasonably susceptible to a defamatory meaning. The Court addresses these three sub-points in turn.

1. Reference to Mahoney

6 7 8 9 To state a defamation claim, the statement on “which the claim is based must specifically refer to, or be ‘of and concerning,’ the plaintiff in some way.” [Blatty v. N.Y. Times Co.](#), 42 Cal.3d 1033, 1042, 232 Cal.Rptr. 542, 728 P.2d 1177 (1986). “In order to satisfy this requirement, the plaintiff must effectively plead that the statement at issue either expressly mentions [her] or refers to [her] by reasonable implication.” [Id.](#) at 1046, 232 Cal.Rptr. 542, 728 P.2d 1177 (citations omitted). Under reference by reasonable implication, “a defamatory statement that is ambiguous as to its target not only must be capable of being understood to refer to the plaintiff, but also must be shown actually to have been so understood by a third party.” [SDV/ACCI, Inc. v. AT&T Corp.](#), 522 F.3d 955, 959 (9th Cir. 2008). Further, where the purportedly defamatory statement refers to a large

group of persons, California courts have determined that “plaintiffs cannot show that the statements were ‘of and concerning them,’ ” especially where the group includes more than 25 members. *Blatty*, 42 Cal.3d at 1046, 232 Cal.Rptr. 542, 728 P.2d 1177 (collecting *779 cases). The issue of whether a statement can be reasonably interpreted as referring to a plaintiff is a question of law for the court. *SDV/ACCI, Inc.*, 522 F.3d at 959.

10 Here, Mahoney admits that she was not identified in the Emergency News Statement but nevertheless claims it referred to her by reasonable implication because it identified “persons at the January 6 protest and events at the Capitol earlier that day who engaged in specific behavior: protestors who posted photos on Meta’s social media platforms.” Opp. at 14 (ECF 116 at 14). The challenged portion of the Emergency News Statement, however, referred to “videos and photos from the protestors” – a group so large that the “of and concerning” requirement could not plausibly be met under California law. Cf. *Blatty*, 42 Cal.3d at 1046, 232 Cal.Rptr. 542, 728 P.2d 1177 (stating that plaintiffs cannot show that allegedly defamatory statements were “of and concerning them” when the statements refer to a group or more than 25). Indeed, Mahoney describes in her pleading that “thousands of people across the country traveled to the Ellipse in D.C. on January 6, 2021, to have their voices heard and to peacefully and lawfully protest the Election and Certification Count.” FAC ¶ 37. Mahoney’s claim fails because the Emergency News Statement refers to a group so large that it cannot be construed as “of or concerning” her in any way. *Blatty*, 42 Cal.3d 1033, 1042, 232 Cal.Rptr. 542, 728 P.2d 1177.

11 Mahoney’s argument additionally fails because she does not show that a third party actually understood the Emergency News Statement to describe her photo as a representation or “promotion of criminal activity.” See *SDV/ACCI, Inc.*, 522 F.3d at 959; FAC ¶ 86. Mahoney does not allege that the Emergency News Statement was published in any form on Instagram itself. Further, Mahoney fails to draw any connection between Meta’s statement on Facebook and @fur.meme’s statements on Instagram, much less that @fur.meme and other members of the Furman University community understood Meta’s statement to refer to her at all. In sum, Mahoney fails to establish that Meta’s Emergency News Statement specifically referred to her or was understood by any third party as referring to her. Her defamation claim fails on this element alone.

2. Publication to a third party who understood the statement as defaming Mahoney

12 California courts define “publication” as a “communication to some third person who understands both the defamatory meaning of the statement and its application to the person to whom reference is made.” *Ringler Assocs. Inc. v. Maryland Cas. Co.*, 80 Cal. App. 4th 1165, 1179, 96 Cal.Rptr.2d 136 (2000).

Mahoney contends that Meta published the Emergency News Statement on Facebook “to the general public on the Internet through its Facebook platform including the @fur.meme Instagram group.” FAC ¶ 155. Mahoney complains that the @fur.meme account “published a series of posts recognizing the Emergency News Statement was referring” to her. FAC ¶ 98. But the posts reproduced in the FAC show nothing of the sort. FAC ¶ 104.

13 Mahoney fails to draw a nexus between (1) the Emergency News Statement and (2) the @fur.meme Instagram posts that identified her as having attended events at the Capitol on January 6, 2021. Mahoney argues in significant part that when Meta posted in its “Emergency News Statement that protestors’ photos at the Capitol events ‘represent promotion of criminal activity,’ @fur.meme and others in this Instagram group seized upon the statement since it *linked* the posting of photos at the U.S. Capitol with the ‘promotion *780 of criminal activity.’ ” Opp. at 15 (ECF 116 at 15, emphasis in original). But the FAC falls well short of alleging that @fur.meme and others on the Instagram platform “seized” upon the Statement or even that they saw the Statement issued on a different platform, Facebook. Mahoney does not allege that the Emergency News Statement was published directly to the @fur.meme Instagram account or even to the Instagram platform. Mahoney does not allege that the @fur.meme Instagram posts make any reference to the Emergency News Statement, and the posts themselves show the opposite. The @fur.meme posts state that Mahoney was known to have attended the “violent, pro-Trump event” based on “pictures [she] shared on [her] public Instagram account[].” FAC ¶ 104. The posts do not refer to the Emergency News Statement, and it is not clear that the

person(s) behind @fur.meme saw Meta's statement at all. FAC ¶ 104. Mahoney does not allege that a single person (1) saw the Emergency News Statement, much less understood its allegedly defamatory meaning towards her, or who (2) legitimately read that allegedly defamatory meaning as applying to her. Mahoney's defamation claim fails on this second prong as well.

3. Falsity or susceptibility to a defamatory meaning

14 15 16 To state a claim for defamation, "defamatory meaning must be found, if at all, in a reading of the publication as a whole ... Defamation actions cannot be based on snippets taken out of context." *Crowe v. County of San Diego*, 608 F.3d 406, 443 (9th Cir. 2010). "The defamatory character of language is measured 'according to the sense and meaning ... which such language may fairly be presumed to have conveyed to those to whom it was published.' " *Balzaga v. Fox News Network, LLC*, 173 Cal. App. 4th 1325, 1337, 93 Cal.Rptr.3d 782 (2009). If no "reasonable viewer could have reasonably understood the statement in the alleged defamatory sense, the matter may be decided as a question of law." *Id.*

Mahoney contends that the Emergency News Statement is not only false, but libel per se because it essentially accuses her of a crime. See ECF 116 at 16 ("[p]erhaps the clearest example of libel per se is an accusation of crime.") (quoting *Barnes-Hind, Inc. v. Superior Ct.*, 181 Cal. App. 3d 377, 385, 226 Cal.Rptr. 354 (1986)). Particularly, Mahoney claims that the Emergency News Statement was "false and untrue" because her photo did not "represent promotion of criminal activity." FAC ¶ 163. She alleges that the Emergency News Statement is defamatory because, in her view, it sweeps in not only criminal conduct at the Capitol but also peaceful protestors like herself. See FAC ¶¶ 164-65.

17 However, Mahoney fails to allege that any person would have reasonably "understood the statement in the alleged defamatory sense" – i.e., that everybody who posted photos from the protest was a criminal. *Balzaga*, 173 Cal. App. 4th at 1337, 93 Cal.Rptr.3d 782 (affirming ruling that no reasonable viewer of news program could have understood it to have defamatory meaning). Meta's statement does not accuse Mahoney of a crime because it does not refer to her at all. No reasonable reader could have reasonably understood the Emergency News Statement in the alleged defamatory sense, and the claim for defamation must be dismissed on this third basis as well.

C. Anti-SLAPP Motion

18 19 20 "Under California's anti-SLAPP statute, a defendant may bring a special motion to strike a cause of action arising from constitutionally protected speech or petitioning activity." *Barry v. State Bar of California*, 2 Cal.5th 318, 320, 212 Cal.Rptr.3d 124, 386 P.3d 788 (2017); ***781** Cal. Code Civ. Pro. § 425.16. California courts generally apply a two-step process for analyzing an anti-SLAPP motion. *Hilton v. Hallmark Cards*, 599 F.3d 894, 903 (9th Cir. 2010). "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them." *Baral v. Schnitt*, 1 Cal.5th 376, 396, 205 Cal.Rptr.3d 475, 376 P.3d 604 (2016). Only "[i]f the court determines that relief is sought based on allegations arising from activity protected by the statute" is the second step reached. *Id.* At the second step, "the burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated." *Baral*, 1 Cal.5th at 396, 205 Cal.Rptr.3d 475, 376 P.3d 604; see also *Hilton*, 599 F.3d at 903.

21 Meta brings a special motion to strike Mahoney's defamation claim because the claim arises from the company's protected speech activity. Mahoney initially opposes Meta's anti-SLAPP motion on the basis that California procedural mechanisms are disallowed in federal court. Mahoney ignores well-settled Ninth Circuit precedent on the issue. An anti-SLAPP motion may be brought against state law claims pending in federal court. See *Gunn v. Drage*, 65 F.4th 1109, 1119 (9th Cir. 2023) ("[W]e have repeatedly affirmed the applicability of California's anti-SLAPP statute in diversity cases."); *Planned Parenthood Fed'n of Am. v. Ctr. for Med. Progress*, 890 F. 3d 828, 834 (9th Cir. 2018). Mahoney is therefore incorrect regarding the availability of the special motion to strike.

22 However, while California's anti-SLAPP provisions generally permit defendants to head off lawsuits that challenge their protected activity in the early stages of a case by striking the complaint without leave to amend, the procedural rules require a slightly different outcome in federal court. The Ninth Circuit has held that "granting a defendant's anti-SLAPP motion to strike a plaintiff's initial complaint without granting the plaintiff leave to amend would directly collide with [Fed. R. Civ. P. 15\(a\)](#)'s policy favoring liberal amendment." [Verizon Delaware, Inc. v. Covad Commc'ns Co.](#), 377 F.3d 1081, 1091 (9th Cir. 2004). If the court finds deficiencies in the claims as pleaded, it may defer consideration of the anti-SLAPP motion pending the filing of an amended complaint. See [Verizon](#), 377 F.3d at 1091 (holding that the district court did not err in deferring consideration of anti-SLAPP motion pending receipt of an amended complaint and affirming denial of anti-SLAPP motion to strike original complaint).

23 Here, the Court finds that Mahoney fails to state a claim for defamation. Mahoney requested leave to amend, and such amendment is not clearly futile at this stage. Accordingly, the Court defers consideration of Meta's anti-SLAPP motion pending the filing of an amended pleading. See [Verizon](#), 377 F.3d at 1091 ("If the offending claims remain in the first amended complaint, the anti-SLAPP remedies remain available to defendants.").

CONCLUSION

For the foregoing reasons, the Court hereby **GRANTS** Meta's motion to dismiss the operative complaint for Mahoney's failure to state a claim for defamation. The Court **DEFERS** ruling on the anti-SLAPP motion in favor of granting leave to amend. Mahoney's amended pleading, if any, shall be filed no later than February 8, 2024. No additional parties or claims may be added without leave of Court or stipulation of Defendant.

IT IS SO ORDERED.

All Citations

710 F.Supp.3d 771

Footnotes

¹ All references to times herein are to Eastern Time.

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